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CHAPTER

41 Electoral Systems in Context: Colombia

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Abstract

Colombia represents a rare case of a political context with a number of electoral system changes over a period of years. It serves as a natural experiment that demonstrates that party systems do react to changes in institutional parameters. There have been uninterrupted democratic elections that allow for long-term comparative study of the effects of electoral reform. From 1974 to 2014, several different basic electoral rules can be observed including single nontransferable vote (SNTV), and the D'Hondt form of party-list proportional representation. Additionally, other factors have changed including a major shift in district magnitude for the election of the Senate, a move from plurality to a two-round system for electing the president, and other areas of change including ballot format and open versus closed lists. Few cases demonstrate as many different areas of electoral study as does Colombia.

Keywords: electoral reform, list proportional representation, open lists, closed lists, single nontransferable vote, Hare quota, D'Hondt, presidentialism

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DESPITE its struggles with political and criminal violence, Colombia has had one of the longest sustained experiences with electoral processes in all of Latin America. This lengthy experience coupled with several instances of institutional reform over the decades provides an excellent case for illustrating the ways in which power-seeking political actors adapt to changes in electoral systems over time. Specifically, Colombia affords the chance to observe various electoral systems and party adaptation to system changes over a multidecade timeframe. This case includes a change from one common proportional representation (PR) formula to another, with constant district magnitudes across the systems—one of the few such reforms in recent times in a purely districted PR system. The prior system was Hare (or simple) quota with largest remainders (LR-Hare), while the reformed system uses D'Hondt divisors.¹ An unusual—probably unique—feature of the Colombian PR system is that parties have the option of presenting either closed or open lists.² As we detail later in this chapter, the former LR-Hare system had evolved, through the adaptive behavior of

political elites, into a de facto version of single nontransferable vote (SNTV), making it among the few cases of this rare system (see also the chapter on Japan by Nemoto in this volume). Earlier, Colombia's electoral system had undergone a major change in 1991 with the move to a nationwide district for the election of its Senate and the adoption of set-aside legislative seats for various minority groups. All of these electoral-system changes make the case a veritable laboratory for electoral system experimentation.

Regarding the wider political context, in addition to the aforementioned violence, the Colombian political system demonstrates how power-seeking actors use party labels as a means of political differentiation. Colombia was a latecomer to the use of official state-provided ballots³ and until quite recently featured parties that lacked control over their own labels; as we discuss later, this lack of label control was one of the features that

resulted in the LR-Hare system turning into what we shall term a quasi-SNTV system. Figure 41.1 illustrates a privately produced ballot published in a Colombian newspaper reflecting one of four Conservative sets of lists in the department of Antioquia for that election. The list explicitly states which local party leaders support this particular set of candidates (Jaime R. Echavarría and his additional linkage to key party leader Belasario Betancur Cuartas). Note that voters could cut out the ballot to use on Election Day.⁴

Figure 41.1.



Privately published ballot as part of an advertisement in Medellín, Colombia, in the newspaper *El Colombiano* (February 25, 1978).

For much of Colombian political history, office-seekers needed to belong, at least nominally, to one of the two “great” political parties. Thus, different factions within the major parties, Liberal and Conservative, tended to present separate lists to compete with one another in an electoral district, but using the valuable label of either of these big parties. This had the further effect of curtailing new party development, even though the proportional electoral system should have encouraged multipartism. However, as rules changed, so too did the behavior of parties and candidates, demonstrating clearly how rules can matter for party systems.

Relevant Political History and Institutional Context

Colombia is a unitary state divided into thirty-two administrative departments that also serve as electoral districts for the Chamber (see Figure 41.2). The governing institutions are composed of a separation of powers system with an elected president and a bicameral legislature. There are also elected officials at the departmental and municipal level. The basic electoral system is one of proportional representation with almost identical electoral rules from the national to the local levels (with some variations).⁵

As measured by Polity IV, Colombia became democratic in 1958, the year in which a short-lived military government was replaced by a power-sharing arrangement known as the National Front. This arrangement ended in 1974, and thus we will make only brief reference to earlier times. Despite the country having qualified as democratic for nearly sixty years, indices of democracy reveal limitations since the mid-1990s.⁶ During the 1974–2014 period, Colombia's Civil Liberties score on the Freedom House index averages a 3.55, putting it in the "partly free" classification for that metric. Its Political Rights score is slightly better, averaging 2.83, placing it on the border of "free" and "partly free." Like Polity IV, Freedom House downgraded Colombia in 1995 and the decade of 1995–2005 was one of Colombia being scored a 4 (or "partly free") in both categories. While still problematic, the period since 2005 has been marked by improvement. And indeed, on a number of metrics, such as kidnappings, displacements, and the homicide rate, there has been marked improvement (Taylor 2016); however, coca production has been on the rise (UNODC 2016) and continues to fuel criminality.

While the current democratic period can be said to have begun in 1958, Colombia's history of elections dates back much further. The country's experience with at least

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limited suffrage elections started in the nineteenth century, and unlike many of its regional neighbors it has rarely been ruled by unelected autocrats. Still, the first truly democratic election (i.e., one with universal suffrage) was the December 1957 plebiscite to adopt a power-sharing agreement to re-establish civilian rule under the National Front. Ironically it was a military dictator, General Gustavo Rojas Pinilla (in power from 1953 to 1957), who extended the franchise to women, although he never provided a chance to use said right.

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Figure 41.2.



Colombia departments and district magnitude for Chamber of Representatives (1991–2014).

The National Front was a pact between the Liberal Party and the Conservative Party designed to resolve a civil war between forces of these parties. The two pillars of the agreement were parity and alternation. Parity meant that all elected and appointed positions in the Colombian government would be split fifty/fifty between the Liberals and the Conservatives. This meant that all electoral competition for legislative bodies was intraparty. This led to the factionalizing of the two parties or, more accurately, encouraged existing factions to more aggressively assert themselves and for new ones to emerge.⁷ This feature also meant the deepening of the quasi-SNTV aspects of this system as factions of both parties presented separate lists that competed with others for the seats allocated to the party (Liberal or Conservative). This point will be expanded upon in the section on electing the national legislature. Alternation meant that the presidency would shift between the two parties every four years, making each electoral cycle an internal contest.⁸

The post-1974 period on which this chapter focuses is marked by two important institutional changes. The first is the promulgation of a new constitution on July 4, 1991, to replace a constitution that had been in use since 1886. The new constitution replaced plurality election of the president with a two-round majority system and shifted to nationwide election of the Senate.⁹ The second significant reform occurred in 2003, which ended the LR-Hare/quasi-SNTV system for all legislative bodies, replacing it with D'Hondt. The exact nature and implications of these changes are discussed later.

Voter turnout in Colombia is low in comparison to other democratic systems, whether regionally or globally. This fact is well illustrated that in Colombia itself citizens speak of the “abstention rate” rather than speaking of “voter turnout.” Table 41.1 compares turnout in presidential elections across the region for select cases during the 1974–2014 period. Colombia’s average is well under 50 percent. This proclivity for low participation rates can be illustrated by pointing to two additional major elections that nonetheless drew low levels of participation. In December of 1990 the country held a plebiscite alongside an election for a constituent assembly to write a new constitution should the plebiscite pass. Turnout of the voting-aged population was 26.06 percent. A September 2016 vote on a peace accord with the rebel movement, the Revolutionary Armed Forces of Colombia (FARC), had a turnout of 37.43 percent. ↵

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Table 41.1 Selected Voter Turnout in Western Hemispheric Democracies (Presidential Elections)

Country	Election Years	Voter Turnout
Uruguay	1989–2014	94.77%
Brazil	1989–2014	78.86%
Argentina	1983–2011	78.00%
Peru	1980–2016	75.26%
Chile	1989–2013	68.09%
Bolivia	1985–2014	67.08%
Mexico	2000–2012	62.63%
United States	1976–2016	56.05%
Colombia*	1974–2014	44.27%

Source: IDEA (<http://www.idea.int/es/data-tools/data/voter-turnout>), Registraduría Nacional del Estado Civil, and authors’ calculations.

* Final round data used for 1994–2014.

The Colombian Party System: Congressional Elections

In this section, we offer an overview of the Colombian party system, with a focus on congressional elections. Later sections review executive elections. All seats in both houses of the bicameral Congress are up for election simultaneously, every four years. The Chamber of Representatives and the Senate are symmetrical in legislative power. Congressional elections take place typically in March, about two months before the presidential contest.¹⁰ Colombia thus represents a relatively rare case of a “counterhoneymoon” electoral cycle (Shugart and Carey 1992; Shugart and Taagepera 2017), in which the election of legislators shortly precedes a presidential election. Under such a cycle, the congressional election may provide information about the relative standings of various parties or intraparty factions, thereby potentially shaping the upcoming presidential election. Colombia’s counterhoneymoon election cycle thus implies presidential candidates’ “coattails” have little effect on the balance of forces in the Congress, in contrast to countries where legislative elections are concurrent or early in a presidential term.

p. 877 The elections in 2014 to the two chambers of the Colombian Congress were the third under the current electoral system of D’Hondt PR. In the Chamber of Representatives, depicted in Table 41.2,¹¹ there are 166 seats elected predominantly from districts corresponding to the country’s major regional subdivisions, the Departments (see ↵ Figure 41.2). There are also 5 seats set aside for minority representation. In Table 41.2 we also see the results of the 2014 Senate election. The Senate’s 102 seats are elected principally in one nationwide district of 100 seats; the other two seats are elected in a special constituency for indigenous Colombians. Note that Colombian voters have the option to vote *en blanco* (literally “white” or blank). These are valid votes for calculating quotas.¹²

The Colombian party system as we see it in the 2014 contests is a marked contrast from what it was for most of the country’s history, which saw dominance of Conservatives and Liberals, both with roots in the country’s early struggles over state formation. While these parties persist to the present period, their centrality clearly has diminished, owing largely to electoral reform and new pathways for partisan expression in the system.

Table 41.3 details the effective number of seat-winning parties (N_S) in the Colombian Congress in the post-1974 period.¹³ Horizontal lines in the table indicate specific institutional eras, as described in the previous section. The numbers clearly show that over time the system has become more overtly fragmented in response to changes to the rules.

The low values of N_S seen in Table 41.4 in elections from 1974 to 1990 result from the dominance of the Conservatives and Liberals. During this time, the Liberal Party always had majorities in both chambers and the only time the Conservatives won the presidency was 1982 when a splinter party, New Liberalism, ran a candidate and split the Liberal vote.¹⁴ The low values of N_S , of course, mask the great intraparty fragmentation of this period, a point to which we shall return. Starting in 1991, under the new constitution, there was increased intraparty fragmentation, leading to the emergence of new parties. This was especially prominent on the Conservative side.¹⁵ The Liberals, though internally fractionalized, initially held the line on breakaway parties due to their electoral dominance in presidential elections and their ability to command majorities in the legislature. However, as their lock on the presidency evaporated starting in 1998 and their legislative prowess started to erode, more breakaway parties formed from Liberal factions. Other new partisan entrants during this period included ex-guerrillas, evangelicals, and regional actors.

The watershed election was 2002, which saw a surge in the number of micro parties. This extreme fragmentation helped lead to the 2003 reforms (Shugart, Moreno, and Fajardo 2007). While the system has remained fragmented since 2006, it now consists of several midsized to small parties, rather than a plethora of micro parties. For comparison's sake, in 2002 there were fifty-six unique labels associated with members of the Chamber and forty-seven in the Senate.¹⁶ In 2014 there were fifteen in the Chamber and ten in the Senate (see Table 41.2).

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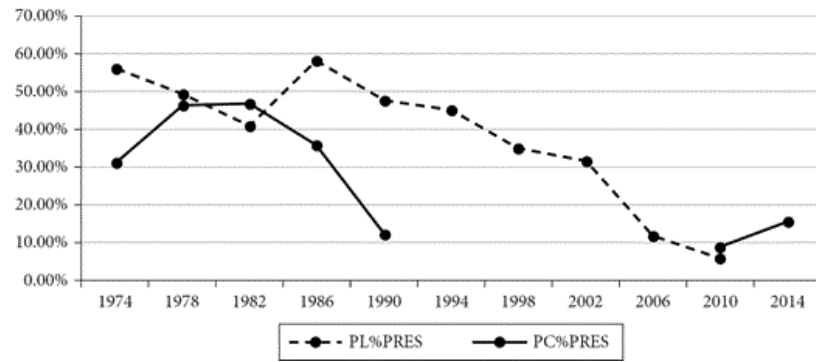
The stark changes in the party system are illustrated by the decline in the vote percentages obtained by the traditional parties for president (Figure 41.3) and Senate (Figure 41.4). The decline of both parties is quite evident, especially for the Conservatives. Indeed, for the presidency they disappear between 1990 and 2010, where there were no official Conservative candidates. In 1994 and 1998, a prominent member of a Conservative family, Andrés Pastrana, ran as an independent (after a stint in the Senate with his own party, the New Democratic Force).¹⁷ He would lose in 1994 to Liberal Ernesto Samper (the last Liberal president to date) and would win in 1998; Pastrana was a key promoter of reform of the electoral system, even if it would not be enacted until the presidency of his successor, in 2002. In that year a former Liberal, Álvaro Uribe Velez, ran and won as an independent.¹⁸ He decisively won re-election in 2006 (after a constitutional amendment allowed him to run again; see discussion later). The success of Uribe clearly affected the Liberals (who plummeted in vote share as shown in Figure 41.3) and caused the Conservatives to not even run candidates in those cycles. By 2010 both traditional parties were winning less than 20 percent of the vote in the first round of presidential elections. It was this context of fragmentation of the party system that spurred the electoral-system reform of 2003, as the traditional parties now shared with many of the newer parties a desire for a system that would give more prominence to party labels and their collective identity (Shugart et al. 2007).

Table 41.3 Absolute and Effective Number of Seat-Winning Parties (N_S), Colombian Congress, 1974–2014

	Chamber		Senate	
	Absolute	N_S	Absolute	N_S
1974	4	2.28	4	2.17
1978	4	2.06	3	2.01
1982	4	1.98	4	2.04
1986	13	2.46	9	2.47
1990	18	2.20	11	2.24
1991	19	3.03	18	3.10
1994	25	2.82	21	2.90
1998	42	3.27	27	3.56
2002	56	7.39	47	9.19
2006	23	7.60	12	7.10
2010	16	5.12	10	5.77
2014	15	6.34	10	6.45

Source: Registraduría Nacional del Estado Civil and authors' calculations.

Figure 41.3.



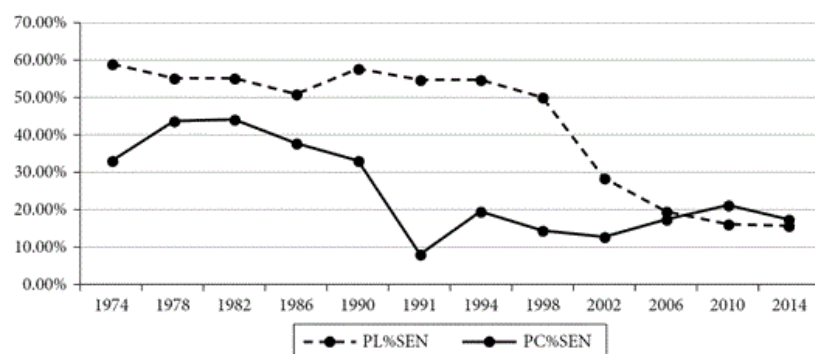
Liberal and Conservative vote shares, presidential elections 1974–2014.

Source: Registraduría Nacional del Estado Civil and authors' calculations.

	Chamber				Senate			
	Seats	% Seats	Votes*	% Votes	Seats	% Seats	Votes [†]	% Votes
Liberal Party	39	23.49%	2,022,093	16.75%	17	16.67%	1,768,825	14.52%
PSUN (La U)	37	22.29%	2,297,786	19.04%	21	20.59%	2,268,911	18.62%
Conservative Party	27	16.27%	1,884,706	15.62%	18	17.65%	1,973,009	16.19%
Democratic Center	19	11.45%	1,355,700	11.23%	20	19.61%	2,113,347	17.35%
Radical Change	16	9.64%	1,108,502	9.18%	9	8.82%	1,006,260	8.26%
Green Alliance	6	3.61%	479,521	3.97%	5	4.90%	567,102	4.65%
Citizen's Option	6	3.61%	467,728	3.88%	5	4.90%	534,250	4.39%
PDA	3	1.81%	414,346	3.43%				
MIRA	3	1.81%	411,800	3.41%				
100% for Colombia	3	1.81%	157,621	1.31%	5	4.90%	540,709	4.44%
AICO	2	1.20%	94,248	0.78%				
FUNECO	2	1.20%	58,965	0.49%				
For a Better Huila	1	0.60%	73,573	0.61%				
ASI	1	0.60%	46,789	0.39%	1	0.98%	35,906	0.29%
Regional Integration	1	0.60%	4,440	0.04%				
MAIS					1	0.98%	48,928	0.40%
Other			100,507	0.83%			334,836	2.75%
Other (Special)			151,397	1.25%			93,296	0.77%
Blancos			824,956	6.83%			757,907	6.22%
Blancos (Special)			115,039	0.95%			139,547	1.15%
	166		12,069,717	100%	102		12,182,833	100%

* Source: Bulletin 42 http://elecciones.registraduria.gov.co:81/congreso2014/preconteo/99CA/DCA9999999_L1.htm.

† CNE Resolution 3006 of 2014.



Liberal and Conservative vote shares, Senate elections, 1974–2014.

Source: Registraduría Nacional del Estado Civil and authors' calculations.

The party system observed in the 2014 election (see Table 41.2) has a number of moderate-sized parties that have emerged mostly since the 2003 electoral reform. In addition to the traditional parties, there are several parties that have been created by existing political elites who calculated that unique party identities would be in their political interests. The most important of these are Radical Change and the Party of National Social Unity. Radical Change was formed by dissident Liberals in 1998, but did not become significant until it became part of the pro-Uribe coalition in 2002. The Party of National Social Unity, known colloquially as “the Party of the U” or “La U,” was formed rather explicitly to support Uribe in the 2006 elections, with its main founding members all being defectors from the Liberals. The most prominent of these was Juan Manuel Santos, whose granduncle had been a Liberal president of Colombia in the 1930s. Santos would go on to be defense minister in the Uribe administration, and later president (elected in 2010 and re-elected in 2014). Additional parties of note include the center-left Green Alliance and the most prominent party of the left, the Alternative Democratic Pole. A number of additional smaller parties are also electorally active. ↴

The newest party in this constellation is the Democratic Center, which was formed by Uribe in 2014 as a vehicle for his return to electoral politics as the head of a list for the Senate. Interestingly, despite the origins of La U and Santos's service in Uribe's government, the Democratic Center has been an opposition party to the Santos administration, and an electoral competitor.

A concluding note on the party system is needed in regards to the problem of violence in Colombian parties. First, the peace process with the FARC will lead to the formation of a new party for the ex-guerrillas. It is worth noting that a party linked to the FARC was founded back in 1985 as the result of peace talks at the time. The Patriotic Union (UP) would go on to win seats in Congress, as well as a handful of mayoralties. However, they would suffer a great deal from political violence. Between 3,500 and 4,000 UP members and associates would be murdered by paramilitary groups between 1988 and 2004.¹⁹ The Patriotic Union still exists, and it ran as part of a coalition of the Left in the 2014 presidential elections (see Table 41.8).

In addition to the gruesome history of the UP, there have been ties between Colombian political parties and paramilitary groups in recent years. For example, in 2006–2010, the National Integration Party (PIN) was formed by relatives and associates of several parties that had been linked to paramilitary groups whose members were either indicted or sentenced to prison. This party was also disbanded in the wake of the “parapolítica” scandal that sent several members of Congress to prison in the early 2000s. Some remnants of political actors affiliated with the PIN continue to run (and win) seats in Congress under the label Citizen's Option.

These two bits of recent history underscore that party politics in Colombia remain placed in a context of violence that cannot be forgotten and that is central to remember as the country works to integrate the FARC into civilian life (as it also hopes to do with the National Liberation Army, i.e., the ELN).

The Electoral System and Its Reforms in 1991 and 2003

In this section, we go into deeper detail on the electoral systems, following the division of periods established in the prior section: (1) 1974–1990 under quasi-SNTV (LR-Hare with multiple lists per party); (2) 1991–2002 with the same formula but changes in districting, particularly the adoption of the nationwide Senate district; and (3) the post-2003 adoption of D’Hondt divisors with party option to present either an open or closed list.

District magnitude and assembly size, the two critical defining features of an electoral system aside from the seat allocation formula (Shugart and Taagepera, this volume), change only with the constitutional reform of 1991. These changes are summarized in Table 41.4. The 1991 reform reduced the size of the Chamber of Representatives, from 199 to 161 (not counting special minority seats, which we will discuss separately), and substantially reduced the average district magnitude. This reduction in the number of representatives left Colombia with one of the most undersized first chambers, relative to population, of any long-term democracy (Taylor et al. 2014, 212), yet the more significant change was to the Senate. Prior to 1991, like the Chamber, it was elected in departmental districts. Since then it has been elected in a one-hundred-seat nationwide district. This reform did not change the electoral formula, thus giving Colombia several years under what is by far the largest district ever used with a (quasi-)SNTV formula. The changes summarized in Table 41.4 make Colombia an unusual case in which it is the second chamber (Senate) that represents the population, via the nationwide district, while the first chamber represents regions.²⁰

Table 41.4 Assembly Size (*S*) and District Magnitude (*M*), Colombian Congress (Excluding Special Seats)

	S (Chamber)	S (Senate)	Average M (Chamber)	Average M (Senate)
1974–1990	199	112 (1974–1978)	7.24	5.09 (1974–1978)
		114 (1982–1990)		4.96 (1982–1990)
1991–2014	161	100	4.88	100

Source: Registraduría Nacional del Estado Civil and authors’ calculations.

Colombia’s history of proportional representation dates to 1929, when LR-Hare was established by law.²¹ Lists were always closed until the 2003 reform gave parties the option of presenting open lists, which, as we shall see, has been the prevalent choice. However, it would be highly misleading to refer to the pre-2003 system as closed-list PR, or as list PR at all, because of the tendency of parties to offer numerous lists per district. There was intense intraparty competition as a result of multiple factions of the Liberals and Conservatives, reflecting allegiances to different regional or national leaders. As time progressed, party leaders, especially in the Liberal Party, understood that running more lists gave them an electoral advantage.²² As the behavior of parties evolved over time, the LR-Hare system became one of “personal lists” in that it was rare, especially in the Chamber, for any list to have sufficient votes to elect more than its top candidate. This is what made the system essentially SNTV rather than list PR (Cox and Shugart 1995).

SNTV is a top- M system, meaning that the candidates with the M highest vote shares win the seats, regardless of party affiliation. In Colombia, these winners were technically the heads of lists, which would include other nominees aside from the list head, but given that few lists could win, or would have expected to win, more than one seat, the system was hardly different from SNTV. In practice, a party typically would win only as many seats as it had personal lists that finished with the top M vote totals in a district. As with “pure” SNTV, the system rewarded a party that could equalize the votes among its candidates (or an electable subset of its candidates if it has more running than the party can possibly elect). This phenomenon is well known from the experience of strictly SNTV systems in Japan and Taiwan (e.g., Batto 2008; Cox and Niou 1994; Grofman et al. 1999; Reed 2009; Shugart and Taagepera 2017). Colombian parties, particularly the major ones, typically had numerous lists running in each district.

Table 41.5 Number of Liberal and Conservative Electoral List for the Senate, 1974–2002

	Number of Territorial Districts	Number of Liberal Lists	Number of Conservative Lists
1974	22	67	54
1978	22	92	61
1982	23	104	72
1986	23	73	67
1990	23	107	57
1991	1	90	25
1994	1	134	35
1998	1	147	25
2002	1	148	30

Source: Registraduría Nacional del Estado Civil and authors' calculations.

The system was not pure SNTV, insofar as some lists did win multiple seats, although the vast majority of lists won only one seat. In addition, prior to 1991, if a member left office before the end of the term, he or she had a *suplente* (substitute) on the list who would assume the seat (see Figure 41.1). From 1991, the *suplente* list was eliminated, and a vacancy was filled by the next available candidate. Lists electing more than one member became less common over time. For example, in 1991 nine Senate lists won multiple seats (accounting for 34 of 102 seats). That number would dwindle to three lists in the elections prior to the shift to D'Hondt, accounting for only six seats in 1994 and 1998, and seven in 2002 (Taylor 2009, 121). Between 1991 and 2002, the incidence of multi-seat-winning lists was even rarer in the Chamber; four lists won multiple seats in 1991 and two lists won multiple seats in 1998 (and there were no multiseat winners in 1994 and 2002).²³ Table 41.5 illustrates the Liberals' and Conservatives' substantial degree of overnomination prior to the 2003 reforms. Figure 41.5, which is the Chamber ballot for the department of Sucre in 1991, illustrates this tendency quite clearly. Even though this is a district with a small M (three), there are seventeen lists (each number represents a list, not just a single candidate) and the Liberals offered six lists and the Conservatives three. The ballot also illustrates that voters had the choice to vote in either the departmental district or the national election for Afro-Colombians (discussed later).

Figure 41.5.



1991 Chamber ballot, Department of Sucre.

p. 885 The phenomenon of multiple lists was due to the fact that there was never, until 2003, any legal requirement for parties to limit the number of lists per district. In fact, until 1994 parties lacked a legal mechanism to control their labels. As a result, multiple factions of the traditional parties would offer lists in a given district, taking advantage of the cheaper “wholesale price” of seats via remainders, as Carey (this volume) terms it (as illustrated in Table 41.6). Because remainder seats cost less, in terms of votes, than do quota seats, the system is supposed to work in such a way that large parties mostly pay full price (i.e., a full quota) for most of their seats, while small parties could win a bargain-price largest-remainder seat here and there.²⁴ However, with multiple lists per party, Colombia’s version of LR-Hare allowed the big parties to have their size and bargain shop too. If small parties overnominated, they risked diluting their votes, leading to fewer seats than they would have won had they made better strategic choices.²⁵ Despite the large number of lists under this system, the Liberal and Conservative Parties became adept at managing their votes such that their rate of commission of “errors” (failing to elect the number of candidates that they had collective votes to elect, due to divisions) declined over time (Cox and Shugart 1995).

Table 41.6 Quota versus Largest-Remainder Winners, Colombian Congress, 1974–2002

	Percentage Quota Winners	Percentage Largest-Remainder Winners
Chamber		
1974–1990	34.37%	65.63%
1991–2002	4.62%	95.38%
Senate		
1974–1990	30.44%	69.56%
1991–2001	18.63%	81.37%

Source: Taylor (2009, 114).

The Electoral Reform of 2003

In 2003, the electoral rules were reformed to shift the system to allocate seats via D'Hondt divisors, with parties given the option for their lists to be open or closed (see Figure 41.6). Interest in changing the electoral system was driven by discontent over the impact of the 1991 constitutional reforms.

Fragmentation had only increased in the interim. As shown, the new post-1991 acceleration of fragmentation included a proliferation of new party labels, yet at the same time continuing intraparty fragmentation through the presentation of multiple competing lists within the parties, in particular the Liberal Party. Summing up the need to change the electoral system, then-president Andrés Pastrana said, in 1998, “Our political system . . . is marked by a crisis of representation wherein citizens do not recognize their elected officials as the spokesmen ↵ of collective interests. Instead, these officials are generally identified as the purveyors of local favors and nothing else” (República de Colombia 1998). With this statement, Pastrana was indicating that political parties, and their labels, were weak under the extant Colombian electoral system. The advocates of reform thus correctly identified ↵ the quasi-SNTV features of the system as a key cause for the lack of collective accountability in the legislative party system.

Accordingly, they promoted adoption of the *cifra repartidora*, otherwise known as the D'Hondt divisor formula. The new law restricted parties to one list per district, although in fact the use of D'Hondt renders the restriction moot. Unlike with LR-Hare, in which a party can gain by splintering as long as it can manage its votes across its multiple lists, under D'Hondt splintering can cost a party seats (see Carey, this volume).

Figure 41.6.

VOTO PARA SENADO DE LA REPÚBLICA

Respetado Elector:
En toda esta tarjeta electoral haga UNA SOLA ELECCIÓN siguiendo estas instrucciones.

VOTO PREFERENTE:
Busque la agrupación política o opción de su preferencia y marque siguiendo alguna de estas opciones, todas son válidas:
Únicamente el número de su candidato - El logo símbolo y el número de su candidato - Solo el logo símbolo

VOTO NO PREFERENTE:
Busque la agrupación política o opción de su preferencia y marque el logo símbolo o en la sección que lo desista.

CANDIDATOS CIRCUNSCRIPCIÓN NACIONAL

CANDIDATOS CIRCUNSCRIPCIÓN ESPECIAL COMUNIDADES INDÍGENAS

2014 Senate ballot.

A particularly contentious aspect of the reform debate was the *type* of list—open, closed, or some hybrid (Shugart et al. 2007). In the end, the two chambers of Congress agreed on a compromise measure that allowed each party the option of presenting either an open or closed list. (A party is free to vary its list type across different districts, even in the same election.) In an open list, any seats a party wins (based on application of D’Hondt to all parties’ vote totals in the district) are awarded to candidates in the order determined by their preference votes. In the version adopted in Colombia, the preference vote is optional—a voter may simply indicate a party vote even if the list the party has presented is open. Crucially, however, party-label votes on an open list have no bearing on the order of election. That is, a voter who casts a label vote is essentially delegating to the party’s other voters the choices of which candidates will take any seats the party wins. Only if the party has opted to present a closed list is there a pre-established party ranking of the candidates to determine which ones are elected.

As shown by Pachón and Shugart (2010), the immediate effect of the reform was to reduce, at the district level, the effective number of vote-earning parties (N_V) in larger-magnitude districts, but to increase it in the smaller districts. This pattern shows the twin effects of the change from what was essentially an SNTV system to D'Hondt. Under the former system, much competition was intraparty, and thus in low-magnitude districts often both winners (if $M = 2$) or two winners (if $M = 3$, for example) were separate lists bearing the label of the same party. On the other hand, in higher-magnitude districts, the LR-Hare (quasi-SNTV) system meant that the last winners could be lists either from a major party or from a small party that had concentrated its votes. Because a seat could be won on an exceedingly small share of the district votes, large-magnitude districts—especially the one-hundred-seat Senate—could see many very small parties with representation. Given the change to D'Hondt, parties with small vote shares could no longer be so sure of winning a seat, and so the new system encouraged consolidation of party labels.

The consolidation of the party system is apparent in the effective number of *seat*-winning parties (N_S) for the Senate in Table 41.3 by comparing the values for 2002 and 2006. In the Senate, with its one-hundred-seat district, N_S dropped from 9.19 to 7.10, still a high figure, but a big drop for a single election.²⁶ The proliferation of small seat-winning parties was further reduced by the adoption of a legal threshold, initially 2 percent of the national vote, raised to 3 percent in 2014. The increase in N_S for the Chamber in 2006 results mainly from variation across districts in the new parties that entered ↴ lists under the new system. (This figure also dropped in the 2010 election and remained below the 2002 value in 2014.)

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In Table 41.7 we offer an example from one district showing how parties and individual politicians adapted to the changed incentives of the new system, comparing the results in the Cauca district in 2002 and 2006. This district has a magnitude of four, making it just under the Chamber mean (see Table 41.4). Winning candidates in each election are shown in bold. In 2002, the party names are indicated in a separate column after the name of the candidate who headed his or her own list, and we indicate the votes for each “personal” list. No list came close to winning a quota seat, and hence all seats were won via largest remainders. Thus, the candidates with the top four vote totals each won a seat, regardless of party.

The 2002 result is a classic “SNTV” outcome, in that the fourth seat was won cheaply, with only about 60 percent of the votes of the first winner. These candidates, García (22,593 votes) and Negret (37,708), were both from the Liberal Party. The Liberal Party did an excellent job of equalizing the votes of its third and fourth candidates, suggesting it was aiming to manage its votes so as to elect three in the district. However, unfortunately for the party, Orozco’s 22,383 made him narrowly the first loser. Given the SNTV-like features of the system, the party could not transfer any surplus from its “too popular” candidate, Negret, nor from its “hopeless” candidate, López De Joaquin, whose votes were about half that of Orozco’s. Thus, of the four seats in the district, two were won by Liberals, and each of the others by candidates bearing separate labels. The Liberals wasted a lot of votes from having too many lists (overnomination) and from the failed equalization of votes on their most viable lists.

Now compare the 2006 result. Here we see candidate votes indicated again, but now we have grouped them by party, reflecting how the electoral system aggregates votes and how the ballot organizes the voting process. Voters must select a party; then they may select a candidate, if their party has presented an open list. We see that some candidates have changed labels between the two elections, reflecting the realignment of the party system that resulted from a new electoral system that put more emphasis on parties as collective actors. One of our losing Liberals from 2002, López De Joaquin, has won a seat on the Liberal list. When her votes and those of other candidates (and votes solely for the label) are summed and compared to the votes of other parties in the district, she is joined in the Chamber delegation from Cauca by another Liberal candidate. The imbalance of their votes no longer matters, because seats are allocated first to lists, and only then to candidates.

We also see that one of the winners from 2002, Piamba, wins a seat on the Conservative Party list. He had won on a distinct label in 2002 (Movimiento Unionista) but linked up with other Conservatives in 2006. Importantly, his own 22,093 votes (not too different from what he won with in 2002) would have been insufficient to win in 2006 were it not for the pooling of other Conservative votes on one list. Yet another of the winners from 2002 shifted to another list, that of Radical Change (which also had a candidate who had run as a Conservative in 2002), and ↵

won a seat, despite a sharp decline in his own votes. In this way we see the priority that the D'Hondt system of 2006 (and subsequent elections) places on collective vote shares for candidates running under common labels that pool votes.²⁷ The number of parties that won in this district stayed the same between the two elections, but the way in which they won seats was no longer by how many candidates (technically, personal lists) they placed in the top four vote totals, but how their pooled votes translated into seats under the rule of D'Hondt divisors.

Table 41.7 District-Level Results in 2002 (Quasi-SNTV) and 2006 (D'Hondt List-PR): Cauca

2002			2006			
Candidate (List Head)	Party	Votes	Party and Candidate	Candidate Votes	Party Votes	Seats by Party
Cesar Negret	Liberal	37,708	Liberal		60,966	2
José Piamba	Unionist Mov.	27,884	(votes for list)	5,990		
Luís Velasco	Liberal Opening	24,452	Gema López De Joaquin	29,204		
Jesus García	Liberal	22,593	Crisanto Pizo	9,652		
Felipe Orozco	Liberal	22,383	Emith Montilla	8,729		
Diego Llanos	Conservative	14,673	Orlan Vergara	7,391		
Carlos Solarte	Social Indígena	14,673	Conservative		35,745	1
Gema López De Joaquin	Liberal	12,022	(votes for list)	2,235		
María Elena Ramírez	ANAPO	8,236	José Piamba	22,093		
María Del Carmen Florez	Radical Change	5,538	José Silva	4,383		
Edgar Guaza	Radical Change	4,841	(two others combined)	7,034		
(8 others combined)		21,615	Radical Change		27,140	1
			(votes for list)	2,439		
			Felipe Orozco	10,773		
			Diego Llanos	9,766		
			(two others combined)	4,162		
			(10 other parties combined)		70,751	0

Source: Registraduría Nacional del Estado Civil.

Winners in **bold**.

Quota in 2002: 54,026.

Table 41.8 District-Level Results in 2002 (Quasi-SNTV) and 2006 (D'Hondt List-PR): Chocó

2002			2006			
Candidate (list head)	Party	Votes	Party and Candidate	Candidate votes	Party votes	Seats by party
Darío Córdoba	Liberal	18,977	Partido Social de Unidad Nacional		15,618	1
Edgar Eulices Torres	Liberal	17,893	(votes for list)	3,001		
(name missing)	Liberal	16,066	Odin Sanchez	10,834		
Esteban Caicedo	Conservative	2,986	Ismael De Jesus Aladana	1,783		
Yesíd Perea	Popular Participation	1,215	Radical Change		13,670	1
Jorge Iván Salgado	MOIR	513	(votes for list)	13,670		
Ramiro Botero	Christian Union	329	Edgar Eulices Torres	(closed list)		
(no other candidates)			Liberal		9,023	0
			(votes for list)	9,023		
			Francisco Córdoba López	(closed list)		
			(other parties not shown)			0

Source: Registraduría Nacional del Estado Civil.

Winners in **bold**.

p. 891 Table 41.8 offers a second example of the impact of the change at the district level. In this case, we consider one of Colombia's smallest districts, electing just two members. As we noted previously, in these districts, the tendency under the old system was often for both seats to be won by separate lists of one party, but in the new system often the seats have gone to separate parties. Under D'Hondt, the leading party wins the second seat only if it has double the votes of the runner-up party. In Chocó in 2002, the top three lists were headed by Liberals, and no candidate of any other party was competitive.²⁸ The three candidates have approximately equal votes, with the third one having nearly 85 percent of the votes of the leader. In other words, competition was entirely intraparty, with three candidates competing for two seats—confirming nicely to the “ $M + 1$ rule” noticed by Reed (1991) for SNTV in Japan.

We see that a Liberal list head who was elected in 2002, Torres, ran in 2006 with Radical Change. This list was closed, with Torres ranked in the first position and thereby assured of election (as long as the list qualified for a seat, which it did easily). The Liberal Party also presented a closed list (but did not win).²⁹ Meanwhile, the Party of National Social Unity presented an open list, but one candidate dominated the preference votes within this list. Effectively, then, competition changed from purely intraparty in 2002 (with three roughly even Liberal vote winners vying for the two seats) to purely interparty in 2006—in one list because most votes were cast for one of the candidates, and in the others because of a list format prohibiting competition between the list's candidates.

The example of two of the three main parties in Chocó in 2006 presenting closed lists conforms to a pattern observed by Pachón and Shugart (2010) and Achury, Ramírez, and Cantú (2017). Closed lists are more common in low-magnitude districts, where a party expects to elect only one candidate anyway. The closed list then effectively signals that this is the list of whichever candidate the party is putting forward as its proposed representative. The second candidate is effectively not competing for votes and would win only in the unlikely event the list doubled the votes of its closest competitor. Closed lists also tend to be presented by parties that are strongly identified by a single leader. For instance, when ex-president Álvaro Uribe formed his own party, Democratic Center in 2014, he was the head of a closed list for the Senate. Other examples have included various parties formed by politicians based on the capital, Bogotá, who presented closed lists in Chamber districts around the country. In this way they downplay the identities of their individual candidates and can focus the campaign around the nationwide reputation of the party leader.

In this sense, and perhaps ironically, the closed lists are often the choice of the most personalistic parties, by which we mean those that are vehicles for the ambitions of a single leader. By contrast, open lists tend to be presented by parties that have several local candidates with personal vote-mobilizing organizations (e.g., the Liberal Party in many of the larger-magnitude districts) or—again, perhaps ironically—those that have a strong party label and want to motivate their candidates to work to get out the vote (e.g., the Democratic Pole; see Achury et al., 2017). In practice, a large majority of representatives and senators have been elected on open lists,³⁰ but the Colombian electoral law has the unusual feature of giving parties the option of averting competition for votes among their candidates. ↴

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Table 41.9 Special Seats in the Colombian Congress

	Chamber Special Seats	Senate Special Seats
1991	None	Indigenous persons (2)
1994	Afro-Colombians (2)	Indigenous persons (2)
1998	Afro-Colombians (2)	Indigenous persons (2)
2002	Afro-Colombians (2)	Indigenous persons (2)
	Indigenous persons (1)	
	Colombians abroad (1)	
2006	Afro-Colombians (2)	Indigenous persons (2)
	Indigenous persons (1)	
	Colombians abroad (1)	
	Political minorities (1)	
2010	Afro-Colombians (2)	Indigenous persons (2)
	Indigenous persons (1)	
	Colombians abroad (1)	
2014	Afro-Colombians (2)	Indigenous persons (2)
	Indigenous persons (1)	
	Colombians abroad (2)	

Source: Authors' compilation from constitutional provisions.

Special Constituencies for Minorities

Colombia is one of several countries to have special constituencies to represent designated minorities (see the chapter by Lublin and Bowler in this volume for a comparison of such cases). These provisions were first established in the constitution of 1991, which provided for two Senate seats to represent the indigenous population. The 1991 constitution allowed for the creation of special seats (up to five) to represent Afro-Colombians, indigenous communities, Colombians living abroad, or other political minorities. Starting in 1994 a national district was created to select two seats for Afro-Colombians. This was expanded starting in 2002 to include one seat for indigenous persons, one for Colombians abroad, and one for political minorities.

This was later codified in the constitution in 2005, with the seats for Colombians abroad increasing to two in a 2013 reform. Starting in 2018 the number of seats for those abroad goes back to one and an ethnic minority in the San Andrés archipelago will get a special seat. Table 41.9 summarizes the provisions and the year they were added.

p. 893 In the special constituencies for Afro-Colombians and for indigenous groups, the ballot gives voters the option of voting either in the regular constituency—i.e., the one-hundred-seat Senate district or their departmental district for Chamber—or instead voting in the special constituency (this is illustrated in Figures 41.5 and 41.6). Voters ↵ choose at the polling place and do not have to belong to the minority group in question.³¹ Colombians abroad, however, are treated as belonging to one global territorial district.

Building on the established concept of set-aside seats, the peace agreement with the FARC guerrillas, signed in 2016, proposes to create new seats to represent the political party that the FARC will form. This party will be guaranteed five seats in each chamber—with whatever seats they win via election being augmented up to five if they do not win them outright. The provisions will be in force only for the 2018 and 2022 elections.³² The peace agreement further establishes transitional “peace constituencies,” each consisting of a single seat to be contested by nonparty candidates in areas that were especially affected by the armed conflict (La Silla Vacía 2017). The precise details could yet change, given that as of late 2017 the peace accords were not fully implemented.

Electing the National Executive

Direct election of the president dates to 1914. From that point until 1994, the president was elected via plurality to a four-year term. The 1991 constitution inserted an absolute majority requirement, with provision for a runoff between the top two if there was no majority in the first round. Under the 1886 constitution presidents could not stand for immediate re-election, but were eligible for nonconsecutive terms.³³ Under the 1991 constitution re-election was totally barred, but in 2005 the constitution was amended to allow for the immediate re-election of the president for a maximum of two terms. This led to Álvaro Uribe being the first popularly elected president in Colombian history to serve back-to-back terms (elected in 2002 and again in 2006). There was an attempt at an amendment in 2009 to allow Uribe to run for a third term, but it was blocked by the Constitutional Court. Juan Manuel Santos, Uribe’s immediate successor, would go on to also serve two consecutive terms. However, the ability to be re-elected was removed in 2015, reverting the constitution to its original state on this matter.

Table 41.10 details the number of candidates who ran in each election since 1974, the effective number of presidential candidates, and the share of the vote won by the top two candidates. In the 1974–1990 period the effective number of candidates averaged 2.47, while in the majority–runoff era from 1994 on the average has been 3.11. Prior to 1990, the top two candidates dominated the field, combining for 87 percent or more of the vote. It is noteworthy that the 1990 election is the one that sees the spike in the number of candidates running (13), and a top–two share of just over 70 percent.

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While the 1990 election was still in the plurality era, it was the first election in which there was a state–printed ballot, which may have lowered the barriers to entry for smaller party candidates (who would have been disadvantaged by the prior requirement to print and distribute their own ballots around the country). It was also the election marked by the participation in politics for the first time of a demobilized guerrilla group, the M–19, whose candidate, Antonio Navarro Wolf, won 12.6 percent of the vote. The election also featured a split in the Conservative Party into the National Salvation Movement and the Social Conservatives. This election thus marks the beginning of the fragmentation of the national party system, as well as the entry of new actors. It also coincided with a national movement to replace the country’s constitution,³⁴ with the Constituent Assembly being elected in 1991 to carry out the task.³⁵ Thus, in terms of the relationship between presidential–election rules and the number of competitors (see Jones, this volume), we can say that the change from plurality rule to majority runoff followed from political fragmentation at the top, rather than was a cause of it. Nonetheless, the trend of an increasing number of entrants continued in subsequent elections until 2006, which, as noted previously, was the first one in which an incumbent was running. That the effective number of candidates was lower in both 2002 and 2006 than other elections after the implementation of the 1991 constitution is attributable to the popularity of Uribe, the only candidate to win the presidency in the first round since the majority requirement was introduced.

Table 41.10 Presidential Elections, 1974–2014

	Absolute Number of Candidates	Effective Number of Candidates	Top Two Party Totals
1974	6	2.36	87.58%
1978	9	2.17	95.95%
1982	5	2.51	87.65%
1986	5	2.12	94.19%
1990	13	3.17	71.52%
1994	18	2.53	88.66%
1998	13	3.15	69.78%
2002	11	2.48	86.38%
2006	7	2.22	84.37%
2010	9	3.46	68.18%
2014	5	4.77	55.00%

Source: Registraduría Nacional d’Estado Civil and authors’ calculations.

The 2014 elections (see Table 41.11) illustrate the basics of the current party system as described earlier. Interestingly, 2014 had the lowest number of candidates since 1986, but also had the lowest top-two vote share of all time. And while the number of candidates was smaller, a large number of parties participated under alliance tickets. Santos ran for re-election as part of a coalition of La U, Radical Change, and the Liberals. The Left ran a coalitional ticket of the Alternative Democratic Pole and the Patriotic Union. The second round was an almost ideal-type example of intraround coalition building: the ↳ Conservatives overtly teamed up with the Democratic Center, while the Greens and the left alliance backed the National Unity Coalition.

Table 41.11 2014 Presidential Elections

First Round (May)			
Óscar Iván Zuluaga	Democratic Center	3,769,005.00	29.28%
Juan Manuel Santos Calderón	National Unity (La U/CR/PL)	3,310,794.00	25.72%
Martha Lucía Ramírez	Conservative Party	1,997,980.00	15.52%
Clara López	Alternative Democratic Pole/Patriotic Union	1,958,518.00	15.22%
Enrique Peñalosa	Green Party	1,064,758.00	8.27%
Blank votes		770,543.00	5.99%
		12,871,598.00	100%
Second Round (June)			
Juan Manuel Santos Calderón	National Unity (La U/CR/PL)	7,839,342	50.99%
Óscar Iván Zuluaga	Democratic Center	6,917,001	44.99%
Blank votes		618,759	4.02%
Total Valid Votes		15,375,102	100.00%

Source: Registraduría Nacional del Estado Civil and authors' calculations.

Another element of presidential elections in Colombia has been the use of a type of open primary to nominate presidential candidates. This has occurred on a limited basis since 1990 when the Liberal Party first used an “internal consultation” (*consulta popular*) to select its candidate (Shugart 1992). The mechanism was deployed in the wake of the assassination of the party’s presumptive nominee, Luis Carlos Galán, at a campaign event in 1989. The primary has been an intermittent feature of Colombia presidential elections since that time, with the Liberals using it in 1990, 1994, 2006, and 2009; the Greens and the Alternative Democratic Pole in 2009; and the Conservatives in 2010.

Conclusion

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Colombia’s electoral system is one that had demonstrated a central notion of the electoral studies literature: that electoral rules matter to the political behavior of both those who vote and those who pursue votes. A main manifestation of this theoretical assumption is that parties will adapt to rules to capture the votes needed to win office. ↵ As a case study, Colombia provides numerous examples of such adaptive behavior, as illustrated by the shift over time in both the effective number of parties and the absolute number of parties competing between 1974 and 2014 (as detailed in Table 41.2). Over that period of time we can see how major changes such as shifts in district magnitude for the Senate and the change to D’Hondt directly influenced the number of parties competing in elections. Specifically, too, these changes demonstrate the fact that groups of candidates understand the importance of party labels as a signaling device to attract voters. As such, the post-2003 rules allow parties to present either open or closed lists—probably the only electoral system in the world leaving this important matter to the discretion of parties. As we detailed, there are predictable patterns connecting the political context of a given party, district, and election to the choice of list type.

Colombia has maintained a competitive electoral democracy through decades in which the country has been beset with violence, both from left-wing guerrillas and from right-wing paramilitary forces. In an effort to strengthen democracy, Colombian elites and popular movements have promoted—and, as we have seen, sometimes enacted—significant institutional reforms. Thus, it is impossible to speak of an electoral system that is completely “stable”; there are ongoing proposals for reform, some of them connected to the ongoing peace process with guerrilla organizations. Yet the lack of stability in rules over recent decades has not meant that actors are unable to adapt to changes in rules in predictable ways. It is this process of reform and adaptation that makes Colombia a crucial case study for the way electoral systems function in their political context.

Notes

1. These terms are explained later; see also Carey (this volume).
2. As discussed in detail later, a closed list means voters must vote for the party as a whole; the candidates are ranked by the party prior to the election. In an open list, voters may vote for a candidate on a list, and the candidates are elected from the list in the order of their vote totals. The only other country we know of that gives parties more than one option of how to organize their general-election lists is Denmark (see Elklit 2005), although a closed list is not one of the options for Danish parties.
3. The state did not start producing ballots until the May 1990 presidential election. Prior to that time, ballots were privately produced and distributed either by party (or, often, factional) operatives or via newspapers. For a history of the Colombian ballot see Taylor (2012). Analysis of the impact of ballot design on voter behavior in Colombia is further discussed in Pachón et al. (2017).

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4. The right column of names for each office, headed “Suplentes,” contains substitute candidates who would take the office if the elected principal resigned. We discuss substitute candidates briefly later.
 5. The main difference is that governors and mayors are elected via plurality, whereas the presidency requires an absolute majority.
 6. Colombia has been categorized as democratic, but “fractionalized” since 1995. See <http://www.systemicpeace.org/polity/col2.htm> (accessed April 2, 2017) ⁵.
 7. See Taylor (2009, 44–52).
 8. Although the only truly competitive election was in 1970, which likely ended in electoral fraud when a Conservative faction (really, another party for all practical purposes and despite the rules of the National Front) called the National Popular Alliance (ANAPO) headed by the former dictator, Gustavo Rojas Pinilla, likely won the election, but the official candidate, Misael Pastrana was declared the winner.
 9. Beyond the scope of this chapter, there were important changes to the powers of the presidency (Archer and Shugart 1997), as well as in the judiciary and decentralization of the political system, including the election of departmental governors. Direct election of mayors had already been introduced in the 1980s.
 10. Since 1958, the only exceptions have been in 1970 and 1974 (when congressional and presidential elections were concurrent) and 1991 (when a special early election only for Congress was called in October under the newly enacted constitution).
 11. Note that the votes for the Chamber are incomplete, as Bulletin 42 only contained 98.42 percent of the polling places having been counted. Final data are not available. The Senate data represent the final, certified vote count.
 12. If the blank vote wins, new elections are called. In the case of mayor races, for example, a new contest requires all new candidates. This has happened on rare occasion (see *El Pais* 2011).
 13. The effective number of parties is a size-weighted index of party system fragmentation. For details, see Shugart and Taagepera (this volume).
 14. In 1982 Belasario Betancur won 46.69 percent of the vote, with the Liberal, Alfonso López, winning 40.96 percent, and the New Liberal, Luis Carlos Galán, winning 10.92 percent.
 15. These included, but were not limited to, the National Salvation Movement, the National Conservative Movement, the New Democratic Force, Independent Conservatism, and the Progressive Force. Indeed, the mainline party itself demonstrated its own internal identity crisis by changing its name to the Social Conservative Party in the late 1980s/early 1990s (it would drop the “Social” from the label by the mid-1990s).
 16. Note that seventeen of the Chamber and six of the Senate seats were elected on coalitional tickets where there may have been some repetition of party labels that elected candidates outside of those coalitions as well.
 17. Pastrana was Bogotá’s first elected mayor in 1988, as a Conservative. Further, his father, Misael, was a leader of the Conservative Party and was president from 1970 to 1974. During the Santos administration, Pastrana emerged as a key voice against the peace process and ally to Uribe.
 18. He served in the Senate for 1986–1990, 1990–1991, and 1991–1994. He also was governor of Antioquia from 1995 to 1997. He ran in 2002 as “Uribe Presidente”/“Colombia First.” In 2006 he simply used “Colombia First.”
 19. See Taylor (2009, 153 and n34) for details. See also Dudley (2004).
 20. Such a division between chambers is not unique, as it is found in Paraguay and Uruguay as well.
 21. From 1910 the law mandated some sort of representation of minority parties but did not specify the exact system to be used (see Baron 1915, 3–17; Eastman 1982, 226–227; and Mazzuca and Robinson 2006).

- p. 898 22. The clearest example of this can be found in the 1990 elections for the National Constituent Assembly, which used one national district (like the Senate rules starting in 1991). In that election, Liberal Party leaders decided to offer multiple lists rather than a unified list and dubbed the approach *Operación Avispa* or Operation: Wasp, insofar as the goal was to win by a swarm of small stings. As a result, while the unified AD/M-19 list won more votes (992,613 vs. 903,984), the Liberals won more seats, 22 to 19.
23. These were all two-seat winning lists, save for one list in Antioquia that won three seats in 1991.
24. Carey shows how parties in Hong Kong have followed a similar evolution under LR-Hare as their counterparts in Colombia decades earlier—presenting multiple lists to maximize their chances of winning seats “cheaply” via remainders.
25. See Taylor (2009, 125–128) for examples, the most prominent being the case of AD/M-19, which had been quite successful with a single list in 1991, but a combination of strategic errors and internal divisions doomed the party in subsequent elections. Radical Change also cost itself seats in 2002 with overnomination.
26. It might be argued that the 2002 high values were unsustainable and were likely to come down even with no electoral system reform. Obviously, this is not testable, but in any case, it was the highly fragmented election of 2002 that spurred the passage of a reform that had been in discussion since the 1998 election. Moreover, as we show later, the behavior of parties after the reform follows closely the incentives that we would expect to have been introduced by the new system.
27. This feature of the changed system is further demonstrated by the fact that the winners in 2006 are not the four candidates with the most votes, as the second Radical Change candidate has more votes than the second Liberal candidate. Yet the latter won a seat, due to his list having had significantly more votes.
28. The name of the third candidate is missing in the original data that we obtained from the electoral authority.
29. This candidate was an incumbent member who had been ranked second on Darío Córdoba’s list and assumed the seat when it became vacant during the term of the Congress elected in 2002.
30. Based on replication data for Achury et al. (2017), generously provided by the authors, only 10 percent of deputies elected in the 2006–2014 period have been from closed lists.
31. In this way, the provisions for minorities are fundamentally different from those in New Zealand (where Maori voters can register to vote in special constituencies—see the chapter by Vowles) or India (where set-aside seats are restricted to candidates of the minority group, but with a single pool of voters—see the chapter by Ziegfeld).
32. The provisions are contained in section 3.2.1.1 of the accords. See <https://draftable.com/compare/JjypTOknafBktqvc> (accessed June 25, 2017) .
33. This only happened once under the 1886 constitution: Alfonso López Pumarejo served from 1934 to 1938 and 1942 to 1946. The closest any other president came was López’s son, Alfonso López Michelsen, who served as president from 1974 to 1978 and then ran, but lost, in the 1982 cycle.
34. Concurrent with the congressional election of March 1990, in which ballots were still distributed by campaign workers or printed in newspapers, was an unofficial plebiscite on calling for the Constituent Assembly. The ballot slips were referred to as Séptima Papeleta (seventh, after the ballots for various other offices being elected) and were counted by the electoral authorities under a presidential decree. See Taylor (2009, 54, 183–184) for more details and an example.
- p. 899 35. In a scene worthy of the magical realism made famous in the country’s literature, the Constituent Assembly would have a three-person presidency that included Antonio Navarro Wolf of the M-19 and Álvaro Gómez Hurtado (National Salvation Movement), who had once been held hostage by the M-19.

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